

HEADNOTE

- “1. The request to amend the patent which concerns both claims challenged by the revocation action and claims not challenged by it is inadmissible (only) with regard to these latter claims.*
- 2. In a situation in which the patent is not entirely attacked, the patent proprietor is entitled to propose amendments to the challenged claims also by inserting features, omitted in the original claims, mentioned in the non-attacked claims.*
- 3. Grounds for revocation that could have been included in the initial statement of revocation are inadmissible if they do not relate to the content of the defence raised by the opposing party or to the application to amend the patent and, therefore, do not constitute a legitimate response to them.”*

COURT
Central Division in Paris

PATENT
EP 3 414 708

KEYWORDS

amendments to patent

written procedure

PROCEEDINGS
Action for revocation

Adaptive sensor sampling of a cold
chain distribution system

SUMMARY

The Central Division in Paris ruled on an action for revocation. The patent at issue relates to adaptive sensor sampling of a cold chain distribution system. According to the headnotes of the decision, a request to amend the patent is inadmissible regarding claims that were not challenged by the revocation action. However, the patent proprietor may amend challenged claims by incorporating features from non-attacked claims. This means that partial attacks on a patent create specific procedural opportunities for the proprietor's defence. Furthermore, grounds for revocation that could have been raised initially are inadmissible if they do not respond to the proprietor's defence or amendment proposal. As a result, later-filed revocation grounds must relate directly to the arguments already presented by the opposing party.